

22STCV29966 22STCV29966

County: los-angeles

Division: Civil Law and Motion

Department: SED

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Case Number: 22STCV29966 Hearing Date: July 10, 2026 Dept: SED

DONALD JONES V. CITY OF LOS
ANGELES, ET AL.

CASE NO.: 22STCV29966

HEARING: 07/10/2026 @ 9:30 a.m.

#12

TENTATIVE ORDER

Defendant City of Los Angeles' unopposed motion to deem requests for admission admitted against Plaintiff Donald Jones is GRANTED.

Defendant City of Los Angeles' unopposed motions to compel Plaintiff Donald Jones' responses is GRANTED.

Plaintiff Donald Jones is ordered to submit verified responses, without objections, within fifteen (15) days of notice of this Order.

Defendant City of Los
Angeles' request for sanctions is GRANTED.

Moving party to give notice.

Defendant City of Los Angeles
(Defendant) move for an order (1) deeming requests for admission admitted against Plaintiff Donald Jones (Plaintiff); and (2) compelling Plaintiff's

responses to Defendant's Demand for Inspection and Production of Documents, Special Interrogatories, and Form Interrogatories.

Defendant also seeks monetary sanctions in the amount of \$2,250.00.

Legal Standard

Requests for Admission

"Any party may obtain discovery .

. . by a written request that any other party to the action admit the genuineness of specified documents, or the truth of specified matters of fact, opinion relating to fact, or application of law to fact. A request for admission may relate to a matter that is in controversy between the parties." (Code Civ. Proc., § 2033.010.) "Within 30 days after service of requests for admission, the party to whom the requests are directed shall serve the original of the response to them on the requesting party, and a copy of the response on all other parties who have appeared"

(Code Civ. Proc., § 2033.250(a).)

If a party to whom request for admissions are served fails to provide a timely response, the party to whom the request was directed waives any objections, including based on privilege or the work product doctrine. (Code Civ. Proc., § 2033.280(a).) The requesting party can move for an order that the genuineness of any documents and the truth of any matters specified in the request be deemed admitted, as well as for monetary sanctions. (Code Civ. Proc., § 2033.280(b).) The court shall issue this order unless the party to whom the request was made serves a response in substantial compliance prior to the hearing on the motion. (Code Civ. Proc., § 2033.280(c).)

Requests for Production of Documents

A party must respond to requests for production of documents within 30 days after service. (Code Civ. Proc., § 2031.260, subd. (a).) If a party to whom requests for production of documents is directed does not provide timely responses, the requesting party may move for an order compelling response to the discovery. (Code Civ. Proc., § 2031.300, subd. (c).) The party also waives the right to make any

objections, including ones based on privilege or work-product protection. (Code Civ. Proc., § 2031.300, subd. (a).)

Interrogatories

When a party fails to serve a timely response to interrogatories, the party propounding the interrogatories may move for an order compelling a response. (Code Civ. Proc., § 2030.290, subd. (b).) A party who fails to provide a timely response waives any objection, including one based on privilege or work product. (Id., § 2030.290, subd. (a).)

Sanctions

If the motion to compel is granted and the moving party properly requests monetary sanctions, the court “shall” impose sanctions against the party to whom the discovery was directed, unless it finds that the sanctioned party acted with substantial justification or that other circumstances make the imposition of sanctions unjust. (Code Civ. Proc., §§ 2030.290, subd. (c) [interrogatories]; 2031.300, subd. (c) [demands for inspection].)

In contrast, with respect to requests for admissions, monetary sanctions are mandatory against the party, the attorney, or both whose failure to serve a timely response necessitated the motion to deem the matters admitted, and the statute does not provide an exception for substantial justification. (Code Civ. Proc., § 2033.280, subd. (c); see also Cal. Rules of Court, rule 3.1348, subd. (a).)

Analysis

On April 1, 2025, Defendant served Plaintiff with Set One of Requests for Admissions, Requests for Production of Documents, Special Interrogatories, and Form Interrogatories. (Valadez Decls., ¶ 2.) Defendant represents that, as of the filing of the instant motions, Plaintiff had failed to serve verified, code-compliant responses. (Id. at ¶ 3.)

Plaintiff’s responses were due on or before May 16, 2025. (Code Civ. Proc., §§ 2030.260, subd. (a), 2031.260, subd. (a), & 2033.250, subd.

(a.) Plaintiff failed to timely serve verified responses, thereby waiving any objections to the discovery requests. (Code Civ. Proc., §§ 2030.290, subd. (a), 2031.300, subd. (a), & 2033.280, subd. (a).)

Plaintiff has not filed an opposition or otherwise disputed Defendant's showing that no timely verified responses were served.

Accordingly, Defendant's motions are GRANTED.

Sanctions

Defendant requests monetary sanctions against Plaintiff and his counsel, jointly and severally, in the amount of \$2,250.00, based on 6.0 hours of attorney time at an hourly rate of \$250.00. Counsel represents that this includes 2.0 hours preparing each of the three motions, and an additional 3.0 hours to prepare replies and appear at the hearing (1.0 hour per motion). (Valadez Decls., ¶ 4.)

Here, as discussed above, the Court grants Defendant's motions to compel. Accordingly, monetary sanctions are warranted. In addition, with respect to the requests for admissions, monetary sanctions are mandatory where a party's failure to serve timely responses necessitates a motion to deem the matters admitted, absent a showing of substantial justification or other circumstances making the imposition of sanctions unjust. (Code Civ. Proc., § 2033.280, subd. (c).)

However, given the straightforward nature of motions to compel initial responses and to deem requests for admissions admitted, the Court finds that 6.0 total hours (consisting of 1.0 hour to prepare each of the three motions and 1.0 hour to appear at the hearing on each motion) constitutes a reasonable amount of attorney time. The Court excludes the requested 3.0 hours for preparing replies because no replies were filed.

Accordingly, Defendant's request for monetary sanctions is GRANTED in the reduced amount of \$1,500.00.

Conclusion

Based on the foregoing, Defendant

City of Los Angeles' unopposed motion to deem requests for admission admitted against Plaintiff Donald Jones is GRANTED.

Defendant City of Los Angeles' unopposed motions to compel Plaintiff Donald Jones' responses is GRANTED.

Plaintiff Donald Jones is ordered

to submit verified responses, without objections, within fifteen (15) days of notice of this Order.

Defendant City of Los Angeles' request for sanctions is GRANTED in the reduced amount of \$1,500.00.